2013 JUL 25 AM 9:00

Bernard J. Youngblood
Wayne County Register of Deeds
July 25, 2013 09:00 AM
Inst:2013351226 MTG Pages:2
Liber:50951 Page:587

Do Not Write Above This Line

2211838

HOME EQUITY MORTGAGE
(LINE)

THIS IS A FUTURE ADVANCE MORTGAGE

This Home Equity Mortgage (the "Mortgage") is made this 22nd day of July, 2013 by Claudia Joy Thatcher, an unmarried woman

Whose address is 9324 Harrison Ct, Livonia, MI 48150 ("Mortgagor") and who mortgages and warrants to Comerica Bank a Texas banking association, whose address is Comerica Bank Tower 1717 Main Street Dallas, TX 75201 ("Mortgagee"), the land and property located in the County of Wayne State of Michigan, more fully described as:

SITUATED IN THE CITY OF LIVONIA, COUNTY OF WAYNE AND STATE OF MICHIGAN:

LOT 258 LIVONIA ESTATE NUMBER 5 OF PART OF THE WEST 1/2 OF THE SOUTHEAST 1/4 OF SECTION 36, TOWN 1 SOUTH, RANGE 9 EAST, CITY OF LIVONIA, WAYNE COUNTY, MICHIGAN AS RECORDED IN LIBER 78 PAGE 31 OF PLATS, WAYNE COUNTY RECORDS.

Commonly known as: 9324 Harrison Ct Livonia, MI 48150

Parcel identification number: 46-144-04-0258-000

together with all buildings and fixtures, whether now existing or hereafter placed on the land and property (the "Property"), to secure repayment of the initial sum of Nine Thousand And 00/100 Dollars ($ 9,000.00) or so much of that sum as may be outstanding from time to time under an Equity Line Account Agreement and Disclosure Statement dated 07/22/2013 (the "Agreement"), including interest thereon and any extensions, renewals, modifications, amendments or supplements thereof, given and owing by:

☐ Mortgagor to Mortgagee.

☒ Claudia Joy Thatcher ("Debtor") to Mortgagee

along with the performance and payment required under this Mortgage by Mortgagor; and additional amounts, with interest, Mortgagee, in its sole discretion, may lend to Mortgagor or Debtor, when evidenced by promissory notes or other instruments or agreements stating such promissory notes, instruments or agreements are secured by this Mortgage (collectively, the "Debt").

In addition to the Debt, this Mortgage shall secure "Protective Advances" as that term is defined in MCLA 565.901 (c).

THE MAXIMUM PRINCIPAL AMOUNT SECURED BY THIS MORTGAGE IS $ 9,000.00

Mortgagor promises and agrees:

1. To keep the Property insured against fire, windstorm, flood and such other hazards in an amount and manner Mortgagee may require, with companies acceptable to Mortgagee and with the proceeds made payable in the policies to Mortgagee under a standard mortgage clause, and to deliver all policies to Mortgagee. Any insurance proceeds received by Mortgagee may be retained by it and may at any time or from time to time be applied by it against the Debt and shall constitute payment on the Debt and under the Agreement only to the extent so applied.
2. To pay all taxes, assessments and water rates levied on the Property before any interest, collection fee or penalty accrues.
3. To promptly remove any liens or encumbrances from the Property except (a) liens given to Mortgagee and (b) the following liens ("Senior Lien"):

4. To keep the Property in good repair and in compliance with all applicable laws.

MTG(2)

5. That if the Property is taken under the powers of eminent domain, or by condemnation, the entire proceeds of the award shall be paid, subject to the rights of the holder of the Senior Lien, if any, directly to the Mortgagee and applied toward reimbursement of all the Mortgagee' s costs and expenses incurred by Mortgagee in connection with collecting such award, including without limit reasonable attorney fees, and the balance applied upon the Debt whether or not then due or payable in whatever manner the Mortgagee deems advisable. The Mortgagee or any of its employees is irrevocably appointed attorney-in-fact and is duly authorized and empowered to receive, receipt for, discharge and satisfy any condemnation award and judgment, whether joint or several, on behalf of the Mortgagor, its legal representatives or assigns.

6. That if Mortgagor fails to perform of any of the duties imposed by this Mortgage (which failure, along with Mortgagor' s or Debtor' s (as applicable) non-payment of the Debt and Mortgagor's failure to comply with the terms of a Senior Lien are referred to collectively as "Events of Default"), Mortgagee may, but is not obligated to, perform those duties and all sums paid by Mortgagee to comply with the terms of this Mortgage shall be due and payable by Mortgagor from the time of their payment by Mortgagee with interest at the highest lawful rate specified in the Agreement and such sums shall be secured by this Mortgage.

7. To reimburse the Mortgagee on demand for the cost of any title search and report made after any Event of Default and for all costs and expenses incurred by Mortgagee in collecting or attempting to collect the Debt or in enforcing or attempting to enforce any of its rights under this Mortgage, including without limit court costs legal expenses and reasonable attorneys' fees (whether inside or outside counsel is used, whether suit is instituted and, if suit is instituted, whether at the trial court level, appellate level, in a bankruptcy or probate proceeding or otherwise).

8. That upon the occurrence of an Event of Default, in addition to all other available remedies, Mortgagee is authorized and empowered to sell the Property or cause the Property to be sold at public sale by foreclosure of the Mortgage by advertisement pursuant to Michigan Law and out of the proceeds of said sale, to retain the amount of the Debt outstanding, the cost, charges of such sale and reasonable attorney fees provided by Michigan statute, and render the surplus moneys, if any, to the Mortgagor. In the event of any foreclosure or other sale under this Mortgage by virtue of judicial proceedings, advertisement or otherwise, the mortgaged premises may be sold in one parcel and as an entirety, or in such parcels, manner or order as the Mortgagee in its sole discretion may elect. IN THE EVENT OF FORECLOSURE BY ADVERTISEMENT UNDER THIS POWER OF SALE, NO NOTICE OF THE MORTGAGE SALE OTHER THAN PUBLICATION IN A NEWSPAPER AND POSTING OF A COPY OF THE NOTICE OF SALE ON THE MORTGAGED PROPERTY IS REQUIRED BY MICHIGAN LAW. THERE WOULD BE NO ACTION OR HEARING BEFORE ANY COURT OF LAW.

9. That the Debt secured by this Mortgage shall become due and payable without notice, at the option of the Mortgagee, and it shall be deemed an Event of Default, if Mortgagor conveys, assigns, or transfers the Property by deed, land contract, or other instruments, or if the title to the Property shall become vested in any other person or persons in any manner whatsoever, whether voluntary or involuntary, by operation of law or otherwise.

10. That this Mortgage shall be governed by Michigan law.

11. That if any provision of this Mortgage is in conflict with any statute or rule of law or is otherwise unenforceable for any reason, then that provision shall be deemed null and void to the extent of the conflict or unenforceability and shall be deemed severable, but shall not invalidate any other provision of the Mortgage.

12. That the term "Mortgagee" includes Mortgagee' s successors and assigns, the term "Debtor" includes Debtor's legal representatives, successors and assigns and the term "Mortgagor" includes and binds Mortgagor's legal representatives, successors and assigns. If this Mortgage is signed by two or more persons, the obligations and security interest granted by this Mortgage shall be joint and several and cumulative. All remedies specified in this Mortgage shall be cumulative and in addition to any other remedies provided by law.

The Mortgagor has signed and delivered this Mortgage the day and year first written above.

MORTGAGOR:

Claudia Joy Thatcher

Claudia Joy Thatcher

State of Michigan)
) **ss.**
County of: Wayne)

The above instrument was acknowledged before me this 22nd day of July, 2013, by Claudia Joy Thatcher, an unmarried woman

Drafted by: Tamika L Webb
and When Recorded Return To:
Consumer Loan Center
P5-PCLC-01-I
2730 Liberty Avenue
Pittsburgh, PA 15222

Notary Public, Wayne County, Michigan
Acting in Wayne County, Michigan
My Commission Expires

BARBARA J WHITNEY
Notary Public - Michigan
Wayne County
My Commission Expires Jul 17, 2014
Acting in the County of Wayne

Barbara J Whitney